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Defendants Alfredo III Gomez

and Freddy Gomez's Motion to Strike Punitive Damages from Plaintiffs' Complaint
is GRANTED with 30 days leave to amend.

Defendants to give notice.

Background

This is an action for motor vehicle negligence regarding an accident that occurred on March 24, 2024. On March 18, 2026, Plaintiffs Raquel Lopez and Juliana Huerta filed this action against Defendants Ean Holdings LLC, Enterprise Holdings, Inc., Alfredo III Gomez, Freddy Gomez, and Does 1 to 30. The Complaint alleges two causes of action for 1) Motor Vehicle Negligence, and 2) General Negligence.

Defendants Alfredo III Gomez and Freddy Gomez (hereinafter, "Defendants") now move to strike portions of the Complaint.

Legal Standard

Code of Civil

Procedure section 436 states the following:

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

(Code Civ. Proc., § 436.)

Meet and Confer

Code of Civil Procedure section 435.5, subdivision (a) requires meeting and conferring “in person, by telephone, or by video conference.”

The parties met and conferred via letter and telephone regarding the issues in this Motion but were unable to come to a resolution. (Greigo Decl., ¶¶ 4-5, 8, Exh. 1.) The Court finds that the meet and confer requirement has been met.

Discussion

Defendants seek to strike the following portions of the Complaint pertaining to punitive damages:

- Paragraph

14a(2) on Page 3 of Plaintiffs’ Complaint; and

- Exemplary

Damages Attachment – Page 6 of Plaintiffs’ Complaint.

The Exemplary Damages Attachment, containing allegations in support of the punitive damages prayer, states the following:

“Plaintiffs

allege that Defendant managed, maintained, entrusted and/or operated their vehicle with such disregard for the safety of others that Defendant’s conduct is despicable. Specifically, on or about March 28, 2024, Defendants Alfredo III Gomez, Freddy Gomez, and each of them willfully and knowingly consumed great

quantities of alcoholic beverages to the point of intoxication and drunkenness which sharply impaired his physical and mental faculties. Knowing that he would be driving the 2023 Nissan Pathfinder, license plate 9EWD897 vehicle immediately thereafter. Defendants Alfredo III Gomez, Freddy Gomez, and each were aware that driving in this intoxicated condition would probably result in an accident which could cause great bodily harm and/or death to those involved in such an accident. Defendants Alfredo III Gomez, Freddy Gomez, and each disregarded these probable consequences by driving while intoxicated without regard to other's safety and wellbeing. Plaintiffs suffered bodily injuries and damages as a result of Defendants' malicious, wanton, and oppressive action. Moreover, Defendants had repeatedly consumed alcoholic beverages despite knowing he would drive the vehicle afterwards."

(Compl., p. 6.)

Defendants argue that such allegations are insufficient to support an award of punitive damages under Civil Code section 3924, and thus, must be stricken. Specifically, such allegations do not demonstrate fraud, oppression, or malice under the controlling caselaw, *Taylor v. Superior Court* ("Taylor") (1979) 24 Cal.3d 890. For example, there are no circumstances alleged suggesting that Defendants had "a conscious disregard of the probable dangerous consequence." (*Id.* at p. 892.) Further, the Complaint is uncertain as to which Defendant was the driver of the subject vehicle.

In opposition, Plaintiffs assert that the Complaint alleges sufficient facts to support an award of punitive damages under Taylor. Specifically, the Complaint alleges that "Defendants willfully and knowingly consumed great quantities of alcohol to the point of intoxication despite knowing that the subject vehicle would be driven immediately thereafter" and that "Defendants understood that driving in such a condition would probably result in an accident capable of causing great bodily harm and/or death and nevertheless disregarded those probable consequences." (Opp., 6:20-22.) Plaintiffs assert that they need not allege additional aggravating circumstances such as prior DUI convictions, swerving, arrest, etc. to support a punitive damages claim. Further, Plaintiffs argue that any factual uncertainties regarding which Defendant was the driver does not warrant striking the punitive damages claim altogether. Plaintiffs request that, if the Court requires clarification, Plaintiffs should be granted leave to amend.

In reply, Defendants reiterate that the Complaint fails to “allege the relevant conduct and state of mind against a single identified driver,” but rather “attributes the same operative conduct collectively to [both Defendants].” (Reply, 5:22-24.) Such allegations are insufficient under Taylor.

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294.” (Today IV’s Inc. v. Los Angeles County MTA (2022) 83 Cal.App.5th 1137, 1193.) Civil Code section 3294 provides that on a non-contract cause of action, a plaintiff may recover punitive damages when they prove “by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294, subd. (a).)

“[I]n cases involving conduct performed without intent to harm, a finding of ‘malice’ for punitives purposes requires proof by clear and convincing evidence that defendant’s tortious wrong amounted to ‘despicable conduct’ and that such despicable conduct was carried on with a ‘willful and conscious disregard’ of the rights or safety of others. (Code Civ. Proc. § 3294, subd. (c)(1); College Hosp., Inc. v. Sup.Ct. (Crowell) (1994) 8 Cal.App.4th 704, 725; see also Taylor, supra, 24 Cal.3d at p. 895 [“[C]ourts have not limited the availability of punitive damages to cases in which such an intent has been shown. . . in order to justify the imposition of punitive damages the defendant. . . must act with the intent to vex, injure, or annoy, or with a conscious disregard of the plaintiff’s rights.”].)

“[T]he act of operating a motor vehicle while intoxicated may constitute an act of ‘malice’ under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences.” (Taylor, supra, 24 Cal.3d at p. 892.) “One who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental facilities with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others.” (Id. at 897.) According to Taylor, driving while intoxicated, absent additional facts, does not always support a claim for punitive damages. There must be pleaded “specific facts from which the conscious disregard of probable injury to others may reasonably be

inferred.” (Dawes v. Sup. Ct. (“Dawes”) (1980) 111 Cal.App.3d 82, 90.)

Here, the Court finds that the Complaint pleads insufficient facts to support Plaintiffs’ prima facie claim for punitive damages. The Complaint generally alleges that Defendants acted with “such disregard for the safety of others that Defendant’s conduct is despicable.” (Compl., p. 6.) The Complaint also alleges that “[Defendants] willfully and knowingly consumed great quantities of alcoholic beverages to the point of intoxication and drunkenness which sharply impaired his physical and mental faculties. Knowing that he would be driving the [vehicle] immediately thereafter. [Defendants] were aware that driving in this intoxicated condition would probably result in an accident which could cause great bodily harm and/or death to those involved in such an accident.” (Ibid.)

The Court finds such allegations lack the specificity required under Taylor and Dawes to infer Defendants acted with conscious disregard of probable injury to others. As discussed in Taylor and Dawes, specific factual circumstances must be pled in showing that the defendant knew that the risk of injury was probable (e.g., extremely high alcohol blood content, weaving through lanes of traffic, a previous conviction for driving under the influence of alcohol, or driving while simultaneously drinking alcohol, etc.). Allegations that Defendants were intoxicated, without more, have the character of ordinary negligence and does not show aggravating circumstances warranting punitive damages.

Further, the Court finds that it is unclear from the Complaint which Defendant was the driver that allegedly caused the accident. It is a factual impossibility that both Defendants were the drivers of the vehicle. Thus, the Complaint is uncertain as to which Defendant’s alleged state of mind and conduct warrants punitive damages. Plaintiffs concede in the opposition that such issue is “factual matter capable of clarification.” (Opp., 8:23.)

However, the Court is persuaded that such deficiencies may be addressed via amendment.

Accordingly, Defendants’ Motion to Strike Punitive Damages from Plaintiffs’ Complaint is granted with 30 days

leave to amend.